

Amicus Briefs Filed in PETA Suit Against North Carolina Law

by Emily Ashcraft

Three *amicus curiae* briefs were filed in the Fourth Circuit on Monday in a lawsuit filed by animal rights organizations against a North Carolina law. The briefs, which each supported the plaintiffs, were filed by [The Reporters Committee for Freedom of the Press](#) and 17 media organizations, [United Farm Workers](#), and [law professors](#).

Plaintiffs and appellees in the lawsuit include People for the Ethical Treatment of Animals, Center for Food Safety, Animal Legal Defense Fund, Farm Sanctuary, Food & Water Watch, Government Accountability Project, Farm Forward, and American Society for the Prevention of Cruelty to Animals. They alleged [in their opening brief filed last week](#) that North Carolina General Statute 99A-2 is unconstitutional. The law is reportedly designed to prevent undercover investigations which are sometimes done to expose animal cruelty. The law would make an employee liable for damages if they release records or images and breach their loyalty to an employer.

The North Carolina law came after an undercover investigation into Food Lion in North Carolina by journalists exposed questionable practices in meat preparation which led to a separate lawsuit mentioned in the plaintiff's brief. The journalists argued that the law infringes rights for gathering news, specifically making audiovisual recordings, which are provided under the constitution and "stifles the ability of the news media to gather and report information about matters of significant public concern." The organizations further alleged that the district court's decision invited legislation that would "chill constitutionally protected reporter-source relationships."

United Farm Workers argued in its brief that the law additionally interferes with its ability to protect farmworkers, because whistleblowing is commonly used by farmworkers who are frequently part of a vulnerable population. They claimed that it also infringes the rights of farmworkers to petition the government and increases risk of exploitation of farmworkers and risk of physical dangers.

The brief explained, "North Carolina's Ag-Gag Law subjects farmworkers to harsh civil penalties if they engage in protected speech such as investigating and documenting evidence of unsafe working conditions and unethical or illegal employer conduct. For example, the Ag-Gag law provides for exemplary damages of \$5,000 per day ... against farmworkers who merely capture photographic evidence of health and safety violations in their place of employment and provide them to the press."

The group of law professors included 18 professors at various universities who study the First Amendment. They also argued in their brief that the law is unconstitutional, penalizing protected speech, and overbroad. They reported that other "ag-gag" statutes which were not as extensive in this law have been struck down by courts. They further critiqued various sections of the law and claimed that it would squelch undercover investigations, undermine state and federal regulations, and place the burden to protect first amendment rights on individuals.

The reporters are represented with lawyers for [The Reporters Committee For Freedom of the Press](#), United Farm Workers is represented by [Martinez Aguilascho & Lynch](#) and the Law Office of R. Chris

Lim, and the lawyers are represented by the [First Amendment Clinic](#) at the University of Georgia School of Law. The plaintiffs are represented by Public Justice, Whitfield Bryson, and individual lawyers. Of the defendants, John Stein, Attorney General of North Carolina and Dr. Kevin Guskiewicz, chancellor of the University of North Carolina-Chapel Hill are represented by the North Carolina Department of Justice and the North Carolina Farm Bureau Federation, Inc is represented by [Mayer Brown](#) and its own attorneys.